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Chapter 313 Annual Eligibility Report Form

SECTION 1: Applicant and District Information

1. Tax year covered by this report: 2024

   NOTE: This report must be completed and submitted to the school district by May 15 of every year using information from the previous tax (calendar) year.

2. Application number: 1377

   NOTE: You can find your application number and all agreement documents and reports on the website comptroller.texas.gov/economy/local/ch313/agreement-docs.php

3. Name of school district: Fort Stockton Independent School District

4. Name of project on original application *(or short description of facility)*: Taygete Energy Project II, LLC

5. Name of applicant on original application: Taygete Energy Project II, LLC

6. Name the company entering into original agreement with district: Taygete Energy Project II, LLC

7. Amount of limitation at time of application approval: $30,000,000.00

8. If you are one of two or more companies originally applying for a limitation, list all other applicants here and describe their relationships. *(Use attachments if necessary.)*

   N/A

SECTION 2: Current Agreement Information

1. Name of current agreement holder(s) West Texas Solar Project II LLC

2. Complete mailing address of current agreement holder 745 Fifth Ave., 25th Floor, New York, NY 10151

3. Company contact person for agreement holder:

Mark Domine	Managing Director
Name	Title
415-535-1294	mdomine@fundamentalrenewables.comm
Phone	Email

4. Texas franchise tax ID number of current agreement holder: 32083088008

5. If the current agreement holder does not report under the franchise tax law, please include name and tax ID of reporting entity:

N/A	N/A
Name	Tax ID

6. If the authorized company representative *(same as signatory for this form)* is different from the contact person listed above, complete the following:

N/A	N/A
Name	Title
N/A	
Complete Mailing Address	
N/A	N/A
Phone	Email

7. If you are a current agreement holder who was not an original applicant, please list all other current agreement holders. Please describe the chain of ownership from the original applicant to the new entities. *(Use attachments if necessary.)*

   West Texas Solar Project II LLC purchased the project in a foreclosure auction initiated by the project's senior lender when the project's previous owner (Taygete Energy Project II, LLC) failed to repay its loan.

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SECTION 3: Applicant Eligibility Information

1. Does the business entity have the right to transact business with respect to Tax Code, Chapter 171? *(Attach printout from Comptroller website: https://mycpa.cpa.state.tx.us/coa/)* . . . . . ☑ Yes ☐ No
2. Is the business entity current on all taxes due to the State of Texas? . . . . . ☑ Yes ☐ No
3. Is the business activity of the project an eligible business activity under Section 313.024(b)? . . . . . ☑ Yes ☐ No

a) 3a. Please identify business activity: Solar electric power generation

SECTION 4: Market Value and Limitation Amount

Please identify the county appraisal district (CAD) in which the project is located: County of Pecos

If the project is located in more than one CAD, please identify the name(s) of the other CADs and provide on a separate sheet for each CAD, the responses to items 1 through 5 applicable to the property (or portion of property) that is reflected in each CAD's property tax account records.

For purposes of item 1, "total market value" should reflect the market value as determined by the CAD (and as adjusted after protest) for only eligible property in all of the CAD property tax accounts covered by the 313 agreement in that county. Please note: "qualified property" is defined by Tax Code section 313.021(2) and 34 Tex. Admin. Code § 9.1051(16) and identified in the executed Chapter 313 agreement.

1. Total market value of all qualified property from all CAD property accounts subject to the 313 agreement . . . . . $ 166,050,000
2. Total value of all applicable exemptions for the qualified property included in item 1 . . . . . $ 0
3. Total taxable value for school I&S tax purposes for the qualified property (Item 1 less Item 2) . . . . . $ 166,050,000
4. Limitation amount on appraised value specified as qualified in the 313 agreement. . . . . $ 0
5. Total taxable value for school M&O tax purposes for the qualified property (lesser of item 3 or item 4) . . . . . $ 30,000,000

SECTION 5A: Wage and Employment Information for Applications Prior to Jan. 1, 2014 **(#1 Through 999)**

ONLY COMPLETE THE WAGE SECTION (5A or 5B) THAT APPLIES TO YOUR APPLICATION. You can find your application number on the website at comptroller.texas.gov/economy/local/ch313/agreement-docs.php

NOTE: All statutory references in Section 5A are for statute as it existed prior to Jan. 1, 2014. For job definitions see TAC §9.1051(14) and Tax Code, §313.021(3). If the agreement includes a definition of "new job" other than TAC §9.1051(14)(C), then please provide the definition "new job" as used in the agreement. Notwithstanding any waiver by the district of the requirement for the creation of a minimum number of new jobs, or any other job commitment in the agreement, Tax Code §313.024(d) requires that 80 percent of all new jobs be qualifying jobs.

1. How many new jobs were based on the qualified property in the year covered by this report? *(See note above)* . . . . . _____
2. What is the number of new jobs required for a project in this school district according to §313.021(2)(A)(iv)(b), §313.051(b), as appropriate? . . . . . _____
3. Did the applicant request that the governing body waive the minimum job requirement, as provided under Tax Code §313.025(f-1)? . . . . . ☐ Yes ☐ No

3a. If yes, how many new jobs must the approved applicant create under the waiver? . . . . . _____

4. Calculate 80 percent of new jobs (0.80 x number of new jobs based on the qualified property in the year covered by this report.) . . . . . _____
5. What is the minimum required annual wage for each qualifying job in the year covered by the report? . . . . . $ _____
6. Identify which of the four Tax Code sections is used to determine the wage standard required by the agreement:
   ☐ §313.021(5)(A) or ☐ §313.021(5)(B) or ☐ §313.021(3)(E)(ii) or ☐ §313.051(b)

6a. Attach calculations and cite exact Texas Workforce Commission data source as defined in TAC §9.1051.

7. Does the agreement require the applicant to provide a specified number of jobs at a specified wage? . . . . . ☐ Yes ☐ No

7a. If yes, how many qualifying jobs did the approved applicant commit to create in the year covered by the report? . . . . . _____

7b. If yes, what annual wage did the approved applicant commit to pay in the year covered by the report? . . . . . $ _____

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7c. If yes, how many qualifying jobs were created at the specified wage in the year covered by the report? . . . . . _____

8. How many qualifying jobs (employees of this entity and employees of a contractor with this entity) were based on the qualified property in the year covered by the report? . . . . . _____

8a. Of the qualifying job-holders last year, how many were employees of the approved applicant? . . . . . _____

8b. Of the qualifying job-holders last year, how many were employees of an entity contracting with the approved applicant? . . . . . _____

8c. If any qualifying job-holders were employees of an entity contracting with the applicant, does the approved applicant or assignee have documentation from the contractor supporting the conclusion that those jobs are qualifying jobs? . . . . . ☐ Yes ☐ No ☐ N/A

SECTION 5B: Wage and Employment Information for Applications After Jan. 1, 2014 (#1000 and Above)

ONLY COMPLETE THE WAGE SECTION (5A or 5B) THAT APPLIES TO YOUR APPLICATION. You can find your application number on the website at comptroller.texas.gov/economy/local/ch313/agreement-docs.php.

NOTE: For job definitions see TAC §9.1051(14) and Tax Code, §313.021(3).

QUALIFYING JOBS

1. What is the number of new qualifying jobs the applicant committed to create in the year covered by this report? 1

2. Did the applicant request that the governing body waive the minimum qualifying job requirement, as provided under Tax Code §313.025(f-1)? . . . . . ☑ Yes ☐ No

2a. If yes, how many new qualifying jobs must the approved applicant create under the waiver? 1

3. Which Tax Code section are you using to determine the wage standard required for this project? ☐ §313.021(5)(A) or ☑ §313.021(5)(B)

3a. Attach calculations and cite exact Texas Workforce Commission data sources as defined in TAC §9.1051.

4. What is the minimum required annual wage for each qualifying job in the year covered by this report? . . . . . $ 59,270.20

5. What is the annual wage the applicant committed to pay for each of the qualifying jobs in the year covered by this report? . . . . . $ 59,270.20

6. How many qualifying jobs (employees of this entity and employees of a contractor with this entity) were based on the qualified property in the year covered by the report? 1

6a. Of the qualifying job-holders last year, how many were employees of the approved applicant? 0

6b. Of the qualifying job-holders last year, how many were employees of an entity contracting with the approved applicant? 1

6c. If any qualifying job-holders were employees of an entity contracting with the applicant, does the approved applicant or assignee have documentation from the contractor supporting the conclusion that those jobs are qualifying jobs? . . . . . ☑ Yes ☐ No ☐ N/A

7. Do the qualifying jobs meet all minimum requirements set out in Tax Code §313.021(3) and TAC 9.1051(30)? . . . . . ☑ Yes ☐ No

NON-QUALIFYING JOBS

8. What is the number of non-qualifying jobs the applicant had on Dec. 31 of the year covered by this report? 0

9. What was the average wage you were paying for non-qualifying jobs on Dec. 31 of the year covered by this report? . . $ 0.00

10. What is the county average weekly wage for non-qualifying jobs, as defined in TAC §9.1051? . . . . . $ 0.00

MISCELLANEOUS

11. Did the applicant rely on a determination by the Texas Workforce Commission under the provisions §313.024(3)(F) in meeting the minimum qualifying job requirements? . . . . . ☐ Yes ☑ No

11a. If yes, attach supporting documentation to evidence that the requirements of §313.021(3)(F) were met.

12. Are you part of a Single Unified Project (SUP) and relying on the provisions in Tax Code §313.024(d-2) to meet the qualifying job requirements? . . . . . ☐ Yes ☑ No

12a. If yes, attach supporting documentation from the Texas Economic Development and Tourism Office including a list of the other school district(s) and the qualifying jobs located in each.

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SECTION 6: Qualified Investment During Qualified Time Period

ENTITIES ARE NOT REQUIRED TO COMPLETE THIS SECTION IF THE YEAR COVERED BY THE REPORT IS AFTER THE QUALIFYING TIME PERIOD OF THEIR AGREEMENT.

1. What is the qualified investment expended by this entity from the beginning of the qualifying time period through the end of the year covered by this report? . . . . . $ _____
2. Was any of the land classified as qualified investment? . . . . . ☐ Yes ☐ No
3. Was any of the qualified Investment leased under a capitalized lease? . . . . . ☐ Yes ☐ No
4. Was any of the qualified Investment leased under an operating lease? . . . . . ☐ Yes ☐ No
5. Was any property not owned by the applicant part of the qualified investment? . . . . . ☐ Yes ☐ No

SECTION 7: Partial Interest

THE FOLLOWING QUESTIONS MUST BE ANSWERED BY ENTITIES HAVING A PARTIAL INTEREST IN AN AGREEMENT.
For limitation agreements where there are multiple company entities that receive a part of the limitation provided by the agreement: 1) each business entity not having a full interest in the agreement should complete a separate form for their proportionate share of required employment and investment information; and, 2) separately, the school district is required to complete an Annual Eligibility Report that provides for each question in this form a sum of the individual answers from reports submitted by each entity so that there is a cumulative Annual Eligibility Report reflecting the entire agreement.

1. What was your limitation amount (or portion of original limitation amount) during the year covered by this report? . . . . _____
2. Please describe your interest in the agreement and identify all the documents creating that interest.

N/A

SECTION 8: Approval

"I am the authorized representative for the Company submitting this Annual Eligibility Report. I understand that this Report is a government record as defined in Chapter 37 of the Texas Penal Code. The information I am providing on this Report is true and correct to the best of my knowledge and belief."

print here	Mark Domine	Managing Director
	Print Name *(Authorized Company Representative)*	Title
sign here	DocuSigned by: Mark Domine 19CD65D81916ADB...	6/9/2025
	Signature *(Authorized Company Representative)*	Date
print here	Meagan Jones	916-620-0724
	Print Name of Preparer *(Person Who Completed the Form)*	Phone

FRANCHISE TAX ACCOUNT STATUS

This record as of July 31, 2025 at 14:52:09

WEST TEXAS SOLAR PROJECT II LLC

Texas Taxpayer Number:	32083088008
Mailing Address:	745 5TH AVE FL 25 NEW YORK, NY 10151 - 2599
Right to Transact Business in Texas:	ACTIVE
State of Formation:	DE
SOS Registration Status (SOS status updated each business day):	ACTIVE
Effective SOS Registration Date:	02/08/2022
Texas SOS File Number:	0804423633
Registered Agent Name:	CORPORATION SERVICE COMPANY
Registered Office Street Address:	211 EAST 7TH STREET SUITE 620 AUSTIN, TX 78701

Public Information Report for Year 2024

Title	Name and Address
MEMBER	**SOLAR DEVELOPMENT LENDING** 745 FIFTH AVENUE 25TH FLOO NEW YORK, NY 10151

TAB 13

Calculation of three possible wage requirements with supporting documentation

AVERAGE WEEKLY WAGES FOR ALL JOBS, ALL INDUSTRIES IN PECOS COUNTY

FOUR MOST RECENT QUARTERS

COUNTY	YEAR	QUARTER	Avg. Weekly Wage
Pecos	2018	Q3	$889.00
Pecos	2018	Q2	$893.00
Pecos	2018	Q1	$937.00
Pecos	2018	Q4	$948.00
		SUM:	$3,667.00
		CALCULATION:	$3,677/4 = **$916.75**

AVERAGE WEEKLY WAGES FOR MANUFACTURING JOBS IN PECOS COUNTY

FOUR MOST RECENT QUARTERS

COUNTY	YEAR	QUARTER	Avg. Weekly Wage
Pecos	2018	Q3	$1,008.00
Pecos	2018	Q2	$973.00
Pecos	2018	Q1	$1,064.00
Pecos	2018	Q4	$974.00
		SUM:	$4,019.00
		CALCULATION:	$1,004.75 * 1.1 = **$1,105.23**

AVERAGE WEEKLY WAGES FOR MANUFACTURING JOBS IN THE PERMIAN BASIN REGION (WDA)

FOUR MOST RECENT QUARTERS

REGION / WDA	YEAR	Hourly/Annual	Avg. Weekly Wage
Permian Basin	2018	$25.90/$53,882	$1,036.19
		CALCULATION:	**$1,036.19** * 1.1 = **$1,139.81**

Please refer to the attached TWC & Council of Governments documentation below.

Year	Period	Area	Ownership	Industry Code	Industry	Level	Average Weekly Wage
2018	04	Pecos	Total All	10	Total, All Industries	0	$ 948.00
2018	01	Pecos	Total All	10	Total, All Industries	0	$ 937.00
2018	02	Pecos	Total All	10	Total, All Industries	0	$ 893.00
2018	03	Pecos	Total All	10	Total, All Industries	0	$ 889.00
Total							$ 3,667.00
Avg							$ 916.75

Year	Period	Area	Ownership	Industry Code	Industry	Level	Average Weekly Wage
2018	04	Pecos	Private	31-33	Manufacturing	2	$ 974.00
2018	01	Pecos	Private	31-33	Manufacturing	2	$ 1,064.00
2018	02	Pecos	Private	31-33	Manufacturing	2	$ 973.00
2018	03	Pecos	Private	31-33	Manufacturing	2	$ 1,008.00
Total							$ 4,019.00
Avg							$ 1,004.75
110%							$ 1,105.23

2018 Manufacturing Average Wages by Council of Government Region
Wages for All Occupations

COG	COG Number	Wages	
		Hourly	Annual
Texas		**$27.04**	**$56,240**
Alamo Area Council of Governments	18	$22.80	$47,428
Ark-Tex Council of Governments	5	$18.73	$38,962
Brazos Valley Council of Governments	13	$18.16	$37,783
Capital Area Council of Governments	12	$32.36	$67,318
Central Texas Council of Governments	23	$19.60	$40,771
Coastal Bend Council of Governments	20	$28.52	$59,318
Concho Valley Council of Governments	10	$21.09	$43,874
Deep East Texas Council of Governments	14	$18.28	$38,021
East Texas Council of Governments	6	$21.45	$44,616
Golden Crescent Regional Planning Commission	17	$28.56	$59,412
Heart of Texas Council of Governments	11	$22.71	$47,245
Houston-Galveston Area Council	16	$29.76	$61,909
Lower Rio Grande Valley Development Council	21	$17.21	$35,804
Middle Rio Grande Development Council	24	$20.48	$42,604
NORTEX Regional Planning Commission	3	$25.14	$52,284
North Central Texas Council of Governments	4	$27.93	$58,094
Panhandle Regional Planning Commission	1	$24.19	$50,314
Permian Basin Regional Planning Commission	9	$25.90	$53,882
Rio Grande Council of Governments	8	$18.51	$38,493
South East Texas Regional Planning Commission	15	$36.26	$75,430
South Plains Association of Governments	2	$20.04	$41,691
South Texas Development Council	19	$17.83	$37,088
Texoma Council of Governments	22	$21.73	$45,198
West Central Texas Council of Governments	7	$21.84	$45,431

Calculated by the Texas Workforce Commission Labor Market and Career Information Department.
Data published: July 2019
Data published annually, next update will be July 31, 2020
Annual wage figure assumes a 40-hour work week.

Note: Data is not supported by the Bureau of Labor Statistics (BLS).
Wage data is produced from Texas Occupational Employment Statistics (OES) data,
and is not to be compared to BLS estimates.
Data intended only for use in implementing Chapter 313, Tax Code.